SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 02/06/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D32. Zoom is approved for all hearings except Issue Conferences and Trials.
Dept. 32's telephone number is: (925) 608-1132.

NOTE: In order to minimize the risk of miscommunication, Dept. 32 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information
https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1
Meeting ID: 161 336 0625
Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C24-00779
CASE NAME: MOORE OKEH VS. HARDEEP SINGH
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: OKEH, MOORE N.
****TENTATIVE RULING:****

Before the Court is Plaintiffs Moore N. Okey and Irene London Motion for Leave to File a Second Amended Complaint. The Motion is **denied** as set forth below.

Procedural Background

Plaintiffs filed their initial complaint on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association ("U.S. Bank") filed a motion to compel arbitration. The hearing for the motion was set for March 21, 2025. As such, any opposition would be due on or before March 10, 2025.

In late February, the parties submitted a joint stipulation to continue the hearing date until April 21, 2025 "or as soon as the Court is available thereafter." The Court signed the stipulation on March 3 resetting the hearing date for May 2, 2025. The stipulation was entered on the docket on March 10, 2025.

Plaintiff never filed an opposition to the motion to compel arbitration. As such, on May 1, 2025, the Court posted the tentative ruling indicating that the "unopposed motion to compel arbitration is granted." Plaintiff did not contest the tentative ruling. Accordingly, the Court issued a minute order on May 2 confirming the tentative ruling as its final order.

Over four months later, on September 15, 2025, Plaintiffs filed a motion to set aside the order compelling arbitration. The hearing on that motion was set for January 16, 2026. Defendants timely opposed the motion, and Plaintiffs never filed a reply. On January 15, the Court issued its tentative ruling denying Plaintiff's motion. Plaintiff did not appear to contest the tentative ruling. As such, the Court adopted its tentative as the Order of the Court – denying Plaintiffs' motion so set aside the order compelling arbitration.

Accordingly, this matter is currently ordered to arbitration.

Analysis

"Once a trial court has compelled claims to contractual arbitration, the court has 'very limited authority with respect to [the] pending arbitration.'" (*Lew-Williams v. Petrosian* (2024) 101 Cal.App.5th 97, 105, citations omitted.) Once a motion to compel is granted and the matter stayed, "the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Titan/Value Equities Group Inc. v. Superior Court* (1994) 29 Cal.App.4th 482, 487.)

"During that time, under its 'vestigial' jurisdiction, a court may: appoint arbitrators if the method selected by the parties fails (§ 1281.6); grant a provisional remedy 'but only upon the ground that the award to which an applicant may be entitled may be rendered ineffectual without provisional relief ' (§ 1281.8, subd. (b)); and confirm, correct or vacate the arbitration award (§ 1285)." (*Ibid.*) "Absent an agreement to withdraw the controversy from arbitration, however, ***no other judicial act is authorized***." (*Ibid.* emphasis added.)

While the motion for leave to amend is unopposed, the Court is without jurisdiction to rule on the motion as the matter has been ordered to arbitration. Plaintiffs attempted to have that order set aside, but that motion was denied.

Conclusion

Plaintiffs' motion is **denied** as this matter has been ordered to proceed in arbitration.

2. 9:00 AM CASE NUMBER: C24-00779
CASE NAME: MOORE OKEH VS. HARDEEP SINGH
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS**
FILED BY: SINGH, HARDEEP
****TENTATIVE RULING:****

Before the Court is Plaintiffs Moore N. Okey and Irene London's Motion to Expunge Lis Pendens.

The Court continues the hearing on this motion to **March 6, 2026**, to allow for additional briefing by the parties as to whether the Court has jurisdiction to hear this matter, as outlined below.

Procedural Background

Plaintiffs filed their initial complaint on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association ("U.S. Bank") filed a motion to compel arbitration. On May 2, 2025, the Court issued a minute order granting the motion to compel.

Thereafter, on May 28, 2025, Plaintiff filed a Notice of Lis Pendens. Defendant Hardeep Singh filed the instant motion to expunge the lis pendens on October 2, 2025. The Court set the hearing on the motion for February 6, 2026. Plaintiffs filed their opposition on January 22. Defendant Singh filed his Reply on January 26, 2026.

Analysis

The Court notes that the Parties papers only address the substantive aspects of the motion to expunge. Neither party discusses the impact of the order compelling arbitration or the Court's jurisdiction to hear this motion based on that order.

Initially, it appears that a motion to expunge a lis pendens can only be heard by the Court and not the arbitrator. First, a "lis pendens may only be recorded when an action is pending in state or federal court." (*Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1051 citations omitted.) To obtain an expungement order, "any time after notice of pendency of action has been recorded, any party … may apply ***to the court*** in which the action is pending to expunge the notice." (Cal. Code Civ. Proc. § 405.30 emphasis added.) The motion to expunge is "confine[d] … ***to the court*** where 'the action' of which notice has been recorded is pending …." (*The Formula Inc. v. Superior*

Court (2008) 168 Cal.App.4th 1455, 1464 emphasis added.)

The above authority appears to dictate that the Court, and not the arbitrator, may rule on the motion to expunge. However, "[o]nce a trial court has compelled claims to contractual arbitration, the court has 'very limited authority with respect to [the] pending arbitration.'" (*Lew-Williams v. Petrosian* (2024) 101 Cal.App.5th 97, 105, citations omitted.) Once a motion to compel is granted and the matter stayed, "the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Titan/Value Equities Group Inc. v. Superior Court* (1994) 29 Cal.App.4th 482, 487 "*Titan*".)

"During that time, under its 'vestigial' jurisdiction, a court may: [1] appoint arbitrators if the method selected by the parties fails (§ 1281.6); [2] grant a provisional remedy 'but only upon the ground that the award to which an applicant may be entitled may be rendered ineffectual without provisional relief ' (§ 1281.8, subd. (b)); and [3] confirm, correct or vacate the arbitration award (§ 1285)." (*Ibid.*) "Absent an agreement to withdraw the controversy from arbitration, however, ***no other judicial act is authorized***." (*Ibid.* emphasis added.)

Once the matter is sent to arbitration, it "is the job of the arbitrator, not the court, to resolve all questions needed to determine the controversy." (*Titan,* supra, 29 Cal.App.4th at 487-88.) This would include determining whether a valid property claim is being asserted and whether Plaintiffs are likely to prevail thereon.

It is clear the motion to expunge does not relate to [1] appointing an arbitrator or [3] confirming, correcting, or vacating an award. With respect to the Court being allowed to grant a 'provisional remedy' under 1281.8, subdivision (b), section 1281.6, provides a list of actions which are deemed 'provisional remedies.' This list does not include a motion to expunge a lis pendens. While a lis pendens may be a 'provisional remedy' in other contexts, "it is not mentioned in this statute." (*Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1054.) "Even if [the Court] ignore[d] the specific limiting language of the statute … [t]he provisional remedies envisioned by section 1281.8 are of the kind 'designed to enable the plaintiff in a civil action to protect against dissipation of property by the defendant during the pendency of the action, with consequent loss of the benefits of a judgment.'" (*Ibid.*) "Under the principle of *ejusdem generis* (literally, 'of the same kind') [citation], the statute does not anticipate or allow for the expungement of a lis pendens." (*Ibid.*)

The Court acknowledges that the procedural posture in *Manhattan Loft, LLC* is different from this case, but the reasoning and rationale still appear to apply. While the Court must rule on a motion to expunge, it is unclear whether the Court has authority to do so while the arbitration is pending.

Based on the above, it is unclear to the Court whether it has jurisdiction to rule on the motion to expunge – at least prior to such time as the arbitration is at an end, or the matter is remanded to the Court on some other basis. However, since neither party addressed this issue in their papers, the Court would like to give the parties an opportunity to brief the matter.

On a related note, when a court has ordered the parties to arbitration, "the court in which such action or proceeding is pending shall, upon motion of a party so such action or proceeding, stay the action or proceeding until an arbitration is had …." (Code Civ. Proc. § 1281.4.) While the Court granted the unopposed motion to compel arbitration on May 2, 2025, Defendants did not request and the Court did not issue a stay of this matter pending resolution of the arbitration. The parties should address whether the lack of the issuance of a stay impacts the Court's jurisdiction to rule on this motion.

Conclusion

Defendant Hardeep Singh's motion to expunge is continued to allow for additional briefing. The Court Orders as follows:

- The hearing on this matter is continued to **March 6, 2026**.
- Both parties are to file a brief addressing the Court's jurisdiction to hear the motion to expunge the lis pendens during the pendency of the arbitration – addressing the issues outlines above – by 4:00 p.m. on **Friday, February 20**.
- The parties' briefs are limited to 10 pages.

There will be no opposition or reply papers. No additional substantive briefing should be submitted.

3. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF 1ST AMENDED CROSS COMPLAINT**
FILED BY: DORESE, ALYSS
****TENTATIVE RULING:****

Continued by the Court to March 13, 2026.

4. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
HEARING ON DEMURRER TO: RE 1ST AMENDED CROSS-COMPLAINT
FILED BY: SHAHI, GOVIND K.
****TENTATIVE RULING:****

This matter is dropped from calendar per the request of the moving party.

5. 9:00 AM CASE NUMBER: C25-00197
CASE NAME: MICHAEL REDONDO VS. CONCORD POST ACUTE CARE
HEARING ON DEMURRER TO: RE 2ND AMENDED COMPLAINT
FILED BY: SYCAMORE HEALTHCARE ASSOCIATES DBA LEGACY POST ACUTE CARE
****TENTATIVE RULING:****

The case is stayed pending arbitration. Please see Line 6.

6. 9:00 AM CASE NUMBER: C25-00197
CASE NAME: MICHAEL REDONDO VS. CONCORD POST ACUTE CARE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: SYCAMORE HEALTHCARE ASSOCIATES DBA LEGACY POST ACUTE CARE
****TENTATIVE RULING:****

The motion to compel arbitration is unopposed and is **granted**. Parties shall submit the dispute to arbitration. This case is stayed pending the outcome. (See Code Civ. Proc., § 1281.2 (c)-(d).) All future dates are taken off calendar and a case management conference is scheduled for August 6, 2026 at 8:30 a.m. at which time parties shall report back concerning the status of arbitration.

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7. 9:00 AM CASE NUMBER: C25-02220
CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: YEE, NANCY NGUYEN
****TENTATIVE RULING:****

[Demurrer]

Introduction

Before the Court is Defendants Robert and Nancy Yee's ("Defendants" or "Yee Defendants") Demurrer. The Demurrer relates to Plaintiff MERS and Shellpoint's Complaint for six contract and fraud related causes of action.

For the following reasons, **Defendants' Demurrer is overruled in its entirety.**

Meet and Confer Requirement

Defendants Robert and Nancy Yee failed to file a declaration in support of their meet and confer efforts in violation of their statutory duties. (CCP §§ 430.41 and 435.5.) However in their reply, Defendants state that they did engage in a good faith meet and confer prior to filing the Demurrer. Since Plaintiff filed a Reply stating that the Defendants did in good faith meet and confer with Plaintiffs, the Court will proceed to the merits.

Statement of Facts

Loan History

On or about June 23, 2022, Nancy Nguyen Yee and Robert Frank Yee, executed a deed of trust securing a promissory note against real property commonly known as 2246 Lake Crest Court Martinez, CA 94553 ("Property") for $640,000 ("Loan") in favor of MERS, as beneficiary, as nominee for Champions Funding, LLC, its successors and assigns. The deed of trust was recorded in the Official Records of Contra Costa County on June 24, 2022, as Document No. 2022-010385 ("2022 Deed of Trust") (Complaint ¶15.) MERS is the current beneficiary of the 2022 Deed of Trust. (Complaint ¶16.) On or about May 1, 2024, Shellpoint took over servicing of the Loan secured by the 2022 Deed of Trust after the acquisition of Specialized Loan Servicing, LLC. (Complaint ¶17.) Shellpoint is the current servicer of the Loan secured by the 2022 Deed of Trust. (Complaint ¶18.)

Litigation and Unsuccessful Payoff

On or about February 23, 2024, Robert Frank Yee and Nancy Nguyen Yee filed a lawsuit in the Contra

Costa County Superior Court, Case Number C24-00387 against Specialized Loan Servicing, LLC, alleging that the Parties had entered into an accord and satisfaction agreement on the grounds that Defendants had written “Payment in Full” on their monthly mortgage statement. (Complaint ¶ 19.)

After multiple demurrers were sustained, Robert Frank Yee and Nancy Nguyen Yee sent a check for $619,004.83 along with a subsequent check for $5,203.03 to purportedly satisfy the remaining loan balance. (Complaint ¶19.) Following the alleged payoff, the Parties quickly resolved the lawsuit and on May 30, 2025, a dismissal of the entire action with prejudice was filed with the Court. (Id.) After Robert Frank Yee and Nancy Nugyen Yee purportedly paid the remaining loan balance in full to Shellpoint for the Loan secured by the 2022 Deed of Trust, on or about April 15, 2025, a Substitution of Trustee and Full Reconveyance was executed, reconveying the 2022 Deed of Trust. (Complaint ¶20.) The Reconveyance was recorded in the Contra Costa County Recorder’s Office on April 16, 2025, as Document Number 2025-0036152 (“Reconveyance”). (Id.)

On or about May 5, 2025, the checks written by Robert Frank Yee and Nancy Nguyen Yee for $619,004.83 and $5,203.03 bounced for insufficient funds. As a result, the Loan was not satisfied. However, by the time the checks had bounced, the 2022 Deed of Trust had been reconveyed. (Complaint ¶21.)

The 2022 Deed of Trust was erroneously reconveyed following the fraudulent payoff that was returned for insufficient funds. At the time the 2022 Deed of Trust and promissory note were executed, the parties to the 2022 Deed of Trust intended for the 2022 Deed of Trust to be recorded as an encumbrance against the Subject Property until the subject Loan was fully paid off. The Loan secured by Plaintiffs’ 2022 Deed of Trust has not been paid off. As a result, the 2022 Deed of Trust should not have been reconveyed. (Complaint ¶¶ 22-24.)

Since the Reconveyance, the Complaint alleges Defendants have taken numerous actions to try and prevent Plaintiffs from reinstating the security, including but not limited to transferring the Property to a trust, entering a purported loan secured by a deed of trust (“2025 Deed of Trust”) and encumbering the Property with a UCC Financing Statement (“UCC Lien”). (Complaint ¶¶ 26-30.).

Request for Judicial Notice

Defendants request judicial notice of three documents: **Exhibit A:** Prior Dismissal with Prejudice in Yee v. Specialized Loan Servicing, et al., Contra Costa County Superior Court Case No. C24-00387, filed May 30, 2025; **Exhibit B:** Full Reconveyance of the subject loan recorded in the Official Records of Contra Costa County on April 16, 2025, as Instrument No. 2025-0036152; and **Exhibit C:** Rescission of Full Reconveyance of the subject loan recorded in the Official Records of Contra Costa County on or about July 3, 2023, as Instrument No. 2025-0067380.

Exhibit A is judicially noticeable under Evidence Code § 452(d) as it is a record of a California State Court. Exhibits B and C are judicially noticeable under Evidence Code §§ 452(c) and (h) because the documents are public records maintained by a government agency which is an executive department of the state and the fact that the documents were recorded on a certain date and contain certain text is not subject to reasonable dispute. Defendant’s requests for judicial notice of Exhibits A through C are granted.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

First Cause of Action for Declaratory Relief

Yee Defendants demur on the grounds that the First Cause of Action for Declaratory Relief fails to state facts sufficient to constitute a cause of action, it is redundant, there is no justiciable controversy, there is a lack of standing because the plaintiffs are not the real-party-in-interest, and for uncertainty.

To qualify for declaratory relief under Code of Civil Procedure section 1060, a plaintiff must satisfy two essential elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Lee v. Silveira* (2016) 6 Cal. App. 5th 527, 546.) Declaratory Relief is properly asserted as a cause of action in the complaint in order to interpret the terms of a contract. (*S. Cal. Edison Co. v. Super. Ct.* (1995) 37 Cal. App. 4th 839, 846-847) ["Section 1060 provides '[a]ny person interested ... under a contract ... may ... bring an original action ... in the superior court ... for a... determination of any question of construction or validity arising under the ... contract' …. [T]he plaintiff 'may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time."'].)

Redundant Claim and No Independent Controversy

Defendants assert that this cause of action simply repackages issues already put before the Court by their cancellation, i.e., that the equitable lien and quiet title counts and a separate declaratory count adds nothing and should be dismissed.

The Complaint alleges there is a present and actual controversy among the parties concerning their rights and obligations in the Subject Property with respect to the Promissory Note and the lost security interest as a result of the errant reconveyance caused by a fraudulent check. (Complaint ¶ 38.) The cause of action is also not redundant because none of the other causes of action request a determination as to the validity and priority of the deed of trust.

Advisory Ruling on Past Acts

Defendant posits that because Declaratory relief is anchored in past events, the cause of action is not for advisory pronouncements about completed conduct where the same issues are already before the Court via other remedies.

Plaintiffs acknowledge they cannot seek an advisory opinion, which is hypothetical, conjectural or anticipated to occur in the future, (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410), and argue that they can seek the interpretation of a contract as the proper subject of declaratory relief. (*S. Cal. Edison Co. v. Superior Ct.* (1995) 37 Cal. App. 4th 839, 845–47.). Here, Plaintiffs' request is ripe for determination because the parties need to determine their rights and obligations with respect to the deed of trust, which is not hypothetical.

Standing/ Real Party in Interest Defects

Defendants contend that neither MERS nor Shellpoint are the owners of the note and claim the Complaint does not allege a real party in interest.

Servicers have standing to take all actions necessary to enforce the deed of trust as the attorney-in-fact for the lender. (See *Kalnoki v. First American Trustee Servicing Solutions LLC* (2017) 8 Cal.App.5th 23 [execution of substitution of trustee by servicer as attorney-in-fact does not render substitution of trustee invalid and does not require providing a power of attorney.].) Thus, Shellpoint has standing to bring this action on behalf of the holder of the Note, and has alleged that they were a servicer of the Note as of 2024. (Complaint ¶¶ 17-18.)

California courts have held that MERS is a valid beneficiary under a deed of trust, with the ability to enforce the deed of trust, even if it has no interest in the note secured by the deed of trust. (*Saterbak v. JPMorgan Chase Bank* (2016) 245 Cal.App.4th 808, 816, fn. 6; *King v. U.S. Bank Trust N.A., et al*. (9th Cir. 2021) 846 Fed. Appx. 474 [holding that MERS was granted the authority under the deed of trust to assign that instrument regardless of its interest in the note].)

MERS is the beneficiary of the 2022 Deed of Trust and therefore has the right to exercise all interests of the beneficiary, including cancelling the void reconveyance and requesting judicial relief pursuant to the rights granted under the 2022 Deed of Trust. (Complaint ¶¶ 15-16.) Accordingly, both Plaintiff Shellpoint and MERS have pleaded standing.

Uncertainty

Demurrers for uncertainty are disfavored. (*Morris v. JPMorgan Chase Bank, N.A*. (2022) 78 Cal.App.5th 279, 292.) They are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (Id.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant's knowledge. (5 Witkin, Cal. Procedure (5th ed. 2008) Pleading, § 976, p. 389.)

Here, Defendants allege that the Complaint is uncertain because the Complaint requests inconsistent theories, such as damages and an equitable lien. (Dem. at p. 5:6-8.)

Plaintiffs respond that they are pleading causes of action in the alternative. A plaintiff who is unsure of the facts or his legal remedies may plead alternative theories of liability, as well as alternative facts in separate causes of action. (See *Del E. Webb Corp. v. Structural Materials Co*. (1981) 123 Cal.App.3d 593, 604; see *Picton v. Anderson Union High School District* (1996) 50 Cal.App.4th 726, 732-733; 5 Witkin, Cal. Proc. (5th ed. 2008), Plead §728; *Mendoza v. Rast Produce Co., Inc*. (2006) 140 Cal.App.4th 1395, 1402.)

Here, the Complaint pleads that there was a purported payoff that caused a reconveyance of the deed of trust, the purported payoff subsequently bounced making the reconveyance improper, and Plaintiffs thereby seek to cancel the reconveyance. (Complaint ¶¶ 19-24.) Plaintiffs seek to recover a security interest in the property, either through cancelling the reconveyance, seeking an equitable lien, or getting a money judgment for fraud. These are essentially ways of stating the same claims differently.

Moreover, Defendants fail to show how the complaint is so incomprehensible that Defendants cannot respond. The facts are also within the Defendants knowledge, as they are privy to the circumstances that led to the subject lawsuit. Based on the foregoing, the complaint is not uncertain.

The Demurrer is overruled for the first cause of action.

Second Cause of Action for Cancellation of Instruments

To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable due to, for example, fraud, and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position. (See *Turner v. Turner* (1959) 167 Cal.App.2d 636, 641.)

Defendants argue that Plaintiffs have not alleged any authority to rescind a reconveyance and Plaintiffs cannot rescind a reconveyance on the basis of mistake. Defendants provide no legal authority in support of their argument.

California law has long held that a reconveyance recorded by a trustee by mistake can be set aside by a court of equity in the absence of a bona fide purchaser or encumbrancer. (*First Fidelity Thrift & Loan Ass'n v. Alliance Bank* (1998) 60 Cal.App.4th 1433, 1441; *Ankoanda v. Walker-Smith* (1996) 44 Cal.App.4th 610, 615; *First Nationwide Savings v. Perry* (1992) 11 Cal.App.4th 1657, 1669.) The Court may order cancellation of an invalid written instrument that is void or voidable. (Cal. Civ. Code §§ 3412, et seq.)

Defendants are alleged to have made a fraudulent payment with insufficient funds for the purpose of inducing the Reconveyance. (Complaint ¶¶58-64.) The trustee of record then did reconvey the 2022 Deed of Trust that was otherwise valid on its face. (Complaint ¶20.) As a result, the Reconveyance is voidable and can be cancelled as pled. Plaintiffs also allege pecuniary harm because if the reconveyance is not cancelled they would have no way of enforcing the remaining debt. (Complaint ¶ 44-48.)

The Demurrer is overruled for the second cause of action.

Third Cause of Action for Equitable Lien

“[E]quity will create a lien on property where this is necessary to accomplish substantial justice and protect creditors. Thus, courts will construe the existence of equitable liens where the parties have erroneously created a defective mortgage where, despite the lack of any formal mortgage or deed of trust it is apparent that the parties intended to create a security interest in property; where the parties have otherwise clearly attempted or intended to make real property security for an obligation; or, even in the absence of any agreement, where it is necessary to prevent unjust enrichment.” (*Grappo v. Coventry Financial Corp*. (1991) 235 Cal.App.3d 496, 509 (internal citations omitted.); see also *JPMorgan Chase Bank, N.A. v. Banc of America Practice Solutions, Inc*. (2012) 209 Cal. App. 4th 855, 861 [“[E]quity will generally ‘give a lender the security for which he bargained in the situation when there is mistake or fraud with respect to an intervening right which cuts off a preexisting encumbrance…”’] (internal quotation omitted).) An equitable lien is awarded as incidental to the enforcement of the original obligation. (*Beal v. United Properties Co*. (1920) 46 Cal.App. 287, 297-298.)

Because the Complaint alleges that the Parties intended for there to be a security interest until the loan was repaid, and yet the Promissory Note is still active and has not been repaid, Plaintiff is entitled to judgment as a matter of law to impress an equitable lien as an alternative to cancelling the errant reconveyance and declaring the deed of trust as being reinstated. (Complaint ¶¶ 22-34.)

Claim Preclusion

"The prerequisite elements of res judicata in its claim preclusion form are (1) the claim in the present action must be identical to a claim litigated or that could have been litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding." (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 185.)

Defendants take the position that the related prior action was dismissed with prejudice pursuant to settlement acknowledging payoff and a dismissal with prejudice is a final judgment on the merits and bars re-litigation of the same primary right.

This argument does not apply in this instance because in the former lawsuit alleged satisfaction and accord of the subject loan while the instant cause of action is for an equitable lien based on an alleged bounced check. (Complaint ¶¶ 19-21.)

Mootness

Defendants' argument on this point is unintelligible and unsupported by any authority.

Superior Equities

Again here, Defendants' argument is unintelligible and unsupported by any authority. What is particularly confusing is that Defendants argue that unjust enrichment is not a cause of action when arguing a Demurrer for an equitable lien cause of action.

Fourth Cause of Action for Quiet Title

Quiet title must be brought by a verified complaint and must state: (1) description of property, (2) title claimed, (3) adverse claims, (4) the date as of which determination is sought, and (5) a prayer. (CCP § 761.020.)

Defendants appear to argue that the elements somehow were not met and that Plaintiffs did not claim a fee interest.

All elements were met to state a valid cause of action. The Complaint is verified. (Complaint at p. 14.) The legal and common address is included. (Complaint ¶3) Plaintiff also describes their security interest pertaining to the Deed of Trust. (Complaint ¶ 54.) Notably, the beneficiary's security interest in the property may be the subject of a quiet title action. (*Hughes* v. *Korntved*, 218 Cal. 3; see also CCP § 760.010(a).) The adverse claim is also described via Defendants' refusal to cancel the errant reconveyance. (Complaint ¶¶ 44, 54-56.) Lastly, Plaintiffs include the date upon which the determination is sought and prayer for relief. (Complaint ¶ 56.) Because all elements were met, this cause of action stated a valid claim for relief.

Fifth Cause of Action for Intentional Misrepresentation

The elements of a cause of action for intentional misrepresentation are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) actual and justifiable reliance, and (5) resulting damage. (*Chapman v. Skype Inc*. (2013) 220 Cal.App.4th 217, 230–231.) The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made

(*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793.) However, "the requirement of specificity is relaxed when the allegations indicate that 'the defendant must necessarily possess full information concerning the facts of the controversy' [citations] or 'when the facts lie more in the knowledge of the' " defendant. (*Daniels v. Select Portfolio Servicing, Inc*. (2016) 246 Cal. App. 4th 1150, 1166–67.) The specificity requirement serves two purposes: "to apprise the defendant of the specific grounds for the charge and enable the court to determine whether there is any basis for the cause of action." (Id.)

Defendants assert that the fifth cause of action fails for lack of specificity, as it does not allege who made the misrepresentations, to whom they were made, when, where, how the misrepresentations were made and that Plaintiffs justifiably relied on the representations, and damages.

A reading of the Fifth Cause of Action confirms that these elements were plead in detail. Plaintiffs allege that Defendants represented via e-mail on April 16, 2025 that they had paid off the subject loan in full. (Complaint ¶58.) Additionally, the mere tender by Defendants constitutes a representation that there are sufficient funds to cover the check (*Wilson v. Lewis* (1980) 106 Cal.App.3d 802 ["Its unqualified tender is a representation that there are sufficient funds to cover it on deposit with the drawee bank which will pay it instantly on demand."].) Plaintiffs further allege that they relied on these representations to their detriment by reconveying the subject loan. (Complaint ¶59.) Plaintiffs also allege that Defendants knew the representations were false and were trying to buy as much time as possible so they could take actions that they believed would prevent Plaintiffs from being able to reinstate the deed of trust once reconveyed, including transferring ownership and taking out fraudulent deeds of trust. (Complaint ¶60.) By doing so, Plaintiffs have sufficiently alleged how (e-mail and check itself) when (4/16/25 and date check was written), where (via e-mail and mailing of check), to whom (e-mail to Plaintiffs' counsel of record and check to Shellpoint), and by what means the representations were made (statement that they paid the loan in full and written check). (Complaint ¶¶ 57-64.)

Sixth Cause of Action for Fraudulent Concealment

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606.)

A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment) (Civ. Code, § 1710, subd. (3); *Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336; see generally, 5 Witkin, Summary of Cal. Law (11th ed. 2023) Torts §§ 913–919.)

Defendants contend that Plaintiffs did not plead the required elements and there is no legal duty to disclose the insufficient funds.

Here, the complaint alleges that Defendants concealed that their account had insufficient funds for the check to clear. (Complaint ¶66.) Plaintiffs also contend that Defendants intended to deceive Plaintiffs by concealing that the check was fraudulent based on the fact that they knew they had insufficient funds in their account to pay off the remaining loan balance. (Complaint ¶68.) Plaintiffs further allege they did not know Defendants had insufficient funds and that the check would eventually bounce. (Complaint ¶67.) Plaintiffs also allege they suffered damage as a result of the fraudulent check based upon the reconveyance. (Complaint ¶¶69-72.)

The Complaint pleads that Defendants also had a duty to disclose this information since the material facts are known or accessible only to Defendants, and Defendants know those facts are not known or reasonably discoverable by Plaintiffs (i.e., exclusive knowledge) (Complaint ¶¶67-68.) The Parties also had a pre-existing relationship via the contractual agreement of the Deed of Trust and . Additionally, the act of passing a bad check with the intent to defraud violates civil and criminal statutes (See e.g. Penal Code 476a.) Thus, the Complaint properly alleges that a legal duty was owed not to conceal the fact that the check was bad.

Order

Defendants' Demurrer is overruled in its entirety.

[Motion to Strike]

Introduction

Before the Court is Defendants Robert and Nancy Yee's ("Defendants" or "Yee Defendants") Motion to Strike. The Motion to Strike relates to Plaintiffs' allegations regarding punitive damages, attorneys fees, equitable lien, allegations allowing double recovery, and conclusions of intent/scienter.

For the following reasons, **Defendants' Motion to Strike is denied in its entirety.**

Meet and Confer Requirement

Defendants Robert and Nancy Yee failed to file a declaration in support of their meet and confer efforts in violation of their statutory duties. (CCP §§ 430.41 and 435.5.) However in their reply, Defendants state that they did engage in a good faith meet and confer prior to filing the Demurrer. Since Plaintiff filed a Reply stating that the Defendants did in good faith meet and confer with Plaintiffs, the Court will proceed to the merits.

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical*

Center (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

<u>Analysis</u>

Improper Notice and Grounds

Defendants fail to adhere to the notice requirements for motions to strike. "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, Rule 3.1322.)

Here, Defendants failed to cite the portion, paragraph, cause of action, count, or defense they seek to strike.

Punitive Damages

Punitive damages must be supported by specific ultimate facts showing malice, oppression, or fraud. Defendant contends that Plaintiffs fail to allege punitive damages with particularity.

The applicable statute governing punitive damages is Civil Code § 3294: 'In an action for the breach of an obligation not arising from contract, where the defendant has been guilty of oppression, fraud, or malice, express or implied, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (*Miller v. Nat'l Am. Life Ins. Co*. (1976) 54 Cal. App. 3d 331, 336.) This section permits recovery of punitive damages in fraud cases. And proof of the cause of action for fraud is itself an adequate basis for awarding punitive damages. (*Oakes v. McCarthy Co*. (1968) 267 Cal.App.2d 231, 263.)

Here, the Complaint alleges two fraudulent causes of action, the fifth cause of action for intentional representation and the sixth cause of action for fraudulent concealment. Both fraud-based causes of action survived the attack on the pleadings by the concurrently filed Demurrer. Thus, Plaintiffs have successfully alleged two fraud-based causes of action which lays the proper foundation upon which Plaintiffs can seek to recover punitive damages.

Attorney's Fees

Defendants argue that Plaintiff did not allege a statute or contract authorizing attorney's fees.

Attorney's fees are recoverable pursuant to the terms of the Note and Deed of Trust. For example, the Deed of Trust, which controls the lender-borrower relationship, provides that the lender can act to protect its interest in the Property. The Deed of Trust specifically provides for the lender's remedies, stating: "Lender's actions can include, but are not limited to: . . . (b) appearing in court; and (c) paying reasonable attorney's fees to protect its interest in the Property and/or rights under this Security Instrument. ." (Id.) (Complaint. Ex. 2, ¶ 9.)

Equitable Lien; Double Recovery; Intent/Scienter Conclusions

Paragraphs 3, 4, and 5 of the Motion to Strike, seek to strike items based on the same arguments raised on demurrer. (Mtn at p. 9:6-11.) For example, Defendants seek to strike the fraud causes of action based on purported pleading deficiencies. (Mtn. ¶ 5.) Defendants also seek to bar alternative legal theories. (Mtn ¶ 4.) Additionally, Defendants claim the equitable lien cause of action cannot be related back to the date the security was originated. (Mtn ¶ 3.)

Each of the above arguments were made on demurrer and argue that the allegations do not rise to a cause of action. Accordingly, the motion is duplicative and improper for a motion to strike.

Order

Defendants' Motion to Strike is denied in its entirety.

8. 9:00 AM CASE NUMBER: L24-02110
CASE NAME: VELOCITY INVESTMENTS LLC VS. LA PERKINS
HEARING IN RE: MOTION TO SET ASIDE DEFAULT & DEFAULT JUDGMENT
FILED BY:
****TENTATIVE RULING:****

Procedural History of the Case

Default was entered against the Defendant on June 17, 2025. Immediately thereafter, Defendant filed a motion to set aside Default and Default Judgment on June 26, 2025. Hearing was set for August 22, 2025.

On August 22,2025, the court continued defendant s motion to set aside default and default judgment because defendant had not given plaintiff notice of the motion s date, time, and department where motion would be heard. The hearing was continued to October 17, 2025.

On October 17, 2025, the defendant's motion to set aside default and default judgment were dropped from calendar finding that Defendant still had not provided notice to the defendant of the time and date of the motion, nor what department the motion will be heard in.

The Defendant filed a Notice of Motion and Motion to Set Aside Default and Default Judgment, Memorandum of Points and Authorities and Declaration of Defendant with the court on October 17, 2026. That pleading shows the hearing date, time and place of February 6, 206, at 9:00 a.m., Dept. 18, Judge D. Douglas in this court. On October 20, 2025, the Defendant filed a Proof of Service by First Class Mail with the court attesting that on October 17, 2025, a non party adult mailed "Motion to Set Aside Default" to Plaintiff's counsel Bryan Burnstad at 10805 Holder St., Suite 167, Cypress, CA 90630.

A Default Judgment was entered against the Defendant on December 10, 2025.

The court has not received an opposition to the Defendant's Motion to Set Aside Default and Default Judgment.

Discussion

The court recognizes there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. The Court has broad discretion to vacate a default and/or default judgment. That discretion, however, “may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.” (*Cruz v. Fagor America, Inc.* (2006) 146 Cal.App.4th 488, 495.)

1. Timeliness

Defendant’s motion is timely. A defendant may seek relief from default under Code of Civ. Proc. (CCP) Section 473(b) by filing a motion within six months after the clerk’s entry of default. Here the clerk’s entry of default occurred on June 17, 2025, and the Defendant’s motion was filed on October 17, 202, just four months later. Defendant’s motion precedes the filing of the Default Judgment, so it is timely also with respect to the Judgment.

2. Grounds for Relief: mistake, inadvertence, surprise, or excusable neglect.

The court is empowered to grant relief from default “upon any terms as may be just ... from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. CCP Section 473(b). Relief may be based on declarations or other evidence making this showing.

In the absence of an attorney affidavit of fault, the burden is on the moving party to show that the default could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) Excusable neglect under C.C.P. § 473(b) is whether “a reasonably prudent person under the same or similar circumstances” might have made the same error. (*Los Rios Community College District* (1986) 42 Cal.3d 270, 276.) Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. (*Hodge Sheet Metal Products v. Palm Springs Riviera Hotel* (1961) 189 Cal.App.2d 653, 656.)

Here defendant’s declaration states, in pertinent part, “I was going through a divorce. My housing was not stable. Work was slowing down if at all. I was so overwhelmed with not working, my three children being evicted. I did not intentionally ignore the lawsuit or the courts.”

The court finds the defendant has made a showing of inadvertence and excusable neglect. She was going through a divorce and eviction proceedings at the same time, while she was attempting to provide for her three children and her income was shrinking due to a slow down at work. She was “overwhelmed” and did not intentionally ignore the lawsuit. The court finds this is distinguishable from the situation of the defendant where allegations of being “busy” and “for[getting]” about the lawsuit were found not to constitute excusable neglect in *Andrews v. Jacoby* (1919) 39 Cal. App. 382, 383-84. The defendant here was overwhelmed by multiple personal crises rather than merely “busy.”

3. Procedural Requirements: copy of the proposed Answer

Section 473(b) of the CCP requires that copy of a proposed Answer be attached to the motion for relief from Default. Defendant did not attach a copy of her proposed Answer to her current motion to set aside the default. (Defendant filed a proposed Answer with her original motion to set aside the default, but she did not file one with her current motion.) The motion must be denied for this reason.

However, the courts have found that this requirement is not jurisdictional and substantial compliance may suffice. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal. App. 4th 393, 403) In that case, the court found substantial compliance where the proposed Answer was brought to the motion hearing and granted a motion for relief from default.

Order:

The motion to set aside default and default judgment is denied, due to the Defendant's failure to submit a proposed Answer with her motion. In order to preserve her right to attend the hearing on February 6, 2026 and potentially bring a copy of a Proposed Answer, Defendant must email the court at dept32@contracosta.courts.ca.gov by 4:00 pm on February 5, 2026 and indicate her request to argue the case on February 6, 2026. The court reserves the right to reverse this order should Defendant email or bring a copy of a proposed Answer to the hearing on February 6, 2026 at 9:00 am in Department 32.

If no party emails the court to request argument by 4:00 p.m. on February 5, 2026, this tentative ruling becomes the order of the court.

9. 9:00 AM CASE NUMBER: N23-2169
CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT
***HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS**
FILED BY: DEBRO, KARL
****TENTATIVE RULING:****

Continued by the Court to April 10, 2026.

10. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MIERZWA, DAN M.
****TENTATIVE RULING****

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

11. 9:00 AM CASE NUMBER: N25-0756
CASE NAME: RAINS LUCIA STERN ST. PHALLE & SILVER, PC VS. DAN MIERZWA
HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
****TENTATIVE RULING****

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

12. 9:00 AM CASE NUMBER: N25-0837
CASE NAME: MCDONALD & MANNION VS. DAN MIERZWA
HEARING ON DEMURRER TO: TO PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
<u>*TENTATIVE RULING*</u>

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

13. 9:00 AM CASE NUMBER: N25-0837
CASE NAME: MCDONALD & MANNION VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITION AND MEMORANDUM OF POINTS AND AUTHORITIES**
FILED BY: MIERZWA, DAN M.
<u>*TENTATIVE RULING*</u>

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C23-02335
CASE NAME: KROPP V SRVUSD
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES. SET ONE TO DEF SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT**
FILED BY: KROPP, SPENCER
<u>*TENTATIVE RULING:*</u>

Plaintiff seeks an Order compelling Defendant SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT (SRVUSD)'s Further Responses to Plaintiff's Special Interrogatories, Set One and for an award of monetary sanctions in the amount of $3,486.00 imposed upon Defendant SRVUSD and its counsel, Anne B. Miller and Brian A. Duus of Leone Alberts & Duus, pursuant to Code of Civil Procedure (CCP) §§ 2030.300 and 2023.030. [1]

<u>SPECIAL INTERROGATORY NO. 36</u>:

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the SECOND INCIDENT, and DESCRIBE the outcome or results of that investigation.

[1] All statutory references are to CCP unless otherwise designated.

<u>RESPONSE TO SPECIAL INTERROGATORY NO. 36</u>:

The District objects on the ground that this interrogatory seeks information protected by the work product and attorney client privileges. It is also overbroad and vague and ambiguous as to the term "second incident." Finally, the District objects to this interrogatory as it seeks information which invades the privacy right of minors pursuant to Education Code sections 49073 - 49079, et seq., as well as The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99), and the

California and Federal Constitution. Accordingly, the District is precluded from releasing information regarding students. In light of these objections, the District cannot respond to this interrogatory.

<u>SPECIAL INTERROGATORY NO. 37</u>:

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the THIRD INCIDENT, and DESCRIBE the outcome or results of that investigation

RESPONSE TO SPECIAL INTERROGATORY NO. 37:

The District objects on the ground that this interrogatory seeks information protected by the work product and attorney client privileges. It is also overbroad and vague and ambiguous as to the term "third incident." Finally, the District objects to this interrogatory as it seeks information which invades the privacy right of minors pursuant to Education Code sections 49073 - 49079, et seq., as well as The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99), and the California and Federal Constitution. Accordingly, the District is precluded from releasing information regarding students. In light of these objections, the District cannot respond to this interrogatory.

<u>SPECIAL INTERROGATORY NO. 38:</u>

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the FOURTH INCIDENT, and DESCRIBE the outcome or results of that investigation. follow the CONCUSSION PROTOCOL as it relates to the FOURTH INCIDENT, and DESCRIBE the outcome or results of that investigation.

<u>RESPONSE TO SPECIAL INTERROGATORY NO. 38:</u>

The District objects on the ground that this interrogatory seeks information protected by the work product and attorney client privileges. It is also overbroad and vague and ambiguous as to the term “fourth incident.” Finally, the District objects to this interrogatory as it seeks information which invades the privacy right of minors pursuant to Education Code sections 49073 - 49079, et seq., as well as The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99), and the California and Federal Constitution. Accordingly, the District is precluded from releasing information regarding students. In light of these objections, the District cannot respond to this interrogatory.

Plaintiff’s central premise is the District cannot “conduct an investigation into the events forming the basis of this lawsuit, obtain statements from witnesses, and then claim blanket privilege and privacy protections to avoid disclosure of relevant information, including the identity of witnesses and steps taken in response to reported injuries.” Plaintiff’s major arguments are:

[1] Defendant’s Responses are Evasive, Incomplete, and Violate the CCP.

[2] Defendant’s Privacy Objections Under the Education Code and the FERPA are Misplaced and Overbroad.

[3] Defendant Cannot Use Improper Objections to Shield Critical, Relevant Information from Discovery.

[4] The Court’s order sustaining demurrers to the claim under Education Code (Ed. Code) § 49475 does not relieve the Defendant of the obligation to respond to these interrogatories.

Plaintiff requests monetary sanctions pursuant to CCP § 2030.300, subd. (d) which provides “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . .opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Plaintiff maintains that Defendant has misused the discovery process and requests monetary sanctions, such as attorneys’ fees, pursuant to CCP § 2023.030(a). Section 2023.030(a) states, “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Plaintiff’s attorney requests $3,486.00 in attorney fees incurred in making this motion and provided the required calculation for that amount. (Nazarian Decl., ¶23.)

The parties’ meet and confer emails were voluminous and detailed. The parties have met their meet and confer obligations.

1. The District’s objection based on the Court’s ruling on the Demurrer is irrelevant.

Defendant argued that it need not respond to Special Interrogatories Nos. 36, 37, and 38 (the interrogatories) because this Court ordered that the provisions of Ed. Code § 49475 do not apply to the instant case. Plaintiff acknowledged that the Order precluded Plaintiff from proceeding with an independent cause of action against SRVUSD under Ed. Code § 49475 for failure to discharge the mandatory duty codified therein, but maintains that Plaintiff can still seek discovery concerning concussion protocols because the court allowed Plaintiff to maintain a cause of action sounding in negligence.

One way to interpret the District's reasoning in its response is, "Because the Court sustained a demurrer on a cause of action for failure to follow concussion protocols under Education Code § 49475, plaintiff no longer has 'a claim that the District failed to follow the CONCUSSION PROTOCOL,' and thus no response to these interrogatories is warranted. The court recognizes the logic of this argument. Viewed from the perspective of the pleadings, the call of the question is problematic.

The Court finds, consistent with the Court rulings on the Demurrers on this issue, that plaintiff may assert "a claim that the District failed to follow the CONCUSSION PROTOCOL" as part of a general cause of action sounding in negligence.

The Court concludes that discovery into "any steps the District took to investigate a claim that the District failed to follow the CONCUSSION PROTOCOL" are not precluded by the Court's ruling on the demurrer. (The District might have a point, from its perspective, if it is taking the position that it cannot describe steps taken to investigate a claim it did not believe was legally sound. However, it is also possible that the District took steps to investigate a claim even if it believed it was not legally viable. In event, the subsequent sustaining of the District's demurrer does not preclude the possibility that the District took steps to investigate the Plaintiff's claim *whether or not* the District believed the premise of the claim was legally viable under the Ed. Code.)

2. The Defendant's Attorney Work Product Privilege and Attorney Client Privilege objections are well-founded.

Plaintiff argues that the District cannot "conduct an investigation into the events forming the basis of this lawsuit, obtain statements from witnesses, and then claim blanket privilege and privacy protections to avoid disclosure of relevant information, including the identity of witnesses and steps taken in response to reported injuries."

However the Plaintiff's interrogatories implicitly if not expressly call for information that may be work product or attorney-client privileged. The interrogatories do not seek merely what the District did or didn't do after the Second, Third and Fourth incidents. The interrogatories seek "*the steps SRVUSD took to investigate Plaintiff's claim* that the District failed to follow the CONCUSSION PROTOCOL," which is a direct call for investigative action the District took after learning of and in response the Plaintiff's lawsuit. By its wording, the interrogatories call for disclosure of actions that an entity would normally undertake under the advice of counsel.

California's civil work product privilege is codified in CCP § 2018.030. Subdivision (a) provides absolute protection to any "writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories." Such a writing "is not discoverable under any circumstances." *Id*.

Subdivision (b) of § 2018.030 provides qualified protection for all other work product. It provides, "the work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice."

The California Supreme Court's decision in *Coito v. Superior Court* (2012) 54 Cal. 4th 480 addressed the work product and attorney-client privilege issues at play here. In that case, the mother of a child who had drowned in the Tuolumne River sued several government entities for wrongful death. After defendant City of Modesto noticed the depositions for five of six juvenile witnesses, counsel for co-defendant California Dept. of Water Resources (the State) sent two investigators from the state Department of Justice to interview four of the juveniles. The State's counsel provided the investigators which questions he wanted asked and each interview was audio recorded. The State used the content of the interviews to ask questions at the depositions. Plaintiff sought the recordings of the interviews.

The Court held, "The recorded witness statements were entitled as a matter of law to at least qualified work product protection. The witness statements may be entitled to absolute protection if defendant can show that disclosure would reveal its "attorney's impressions, conclusions, opinions, or legal research or theories" as protected under §2018.030(a). The Court continued, "If not, then the items may be subject to discovery if plaintiff can show that "denial of discovery will unfairly prejudice [her] in preparing [her] claim … or will result in an injustice." (§ 2018.030(b) *Coito*, 54 Cal. 4th at 486.

With regard to a list of witnesses from whom counsel had obtained statements, the *Coito* Court held,

> As to the identity of witnesses from whom defendant's counsel has obtained statements, we hold that such information is not automatically entitled as a matter of law to absolute or qualified work product protection. In order to invoke the privilege, defendant must persuade the trial court that disclosure would reveal the attorney's tactics, impressions, or evaluation of the case (absolute privilege) or would result in opposing counsel taking undue advantage of the attorney's industry or efforts (qualified privilege).
>
> Id., at 486.

Plaintiff's argument that the District is required to produce a list of witnesses does not take into account the possibility that the identity of witnesses may be the product of attorney work product, or that such disclosure would reveal the attorney's tactics, impressions or evaluation of the case and result in Plaintiff's counsel "taking undue advantage of the attorney's industry or efforts" as described in *Coito*. Plaintiff's argument, for example, that the Defendant "is aware that the full names, likenesses and identifying information of the athletes on the San Ramon Valley High School football team are publicly available through services like 'Hudl' the video recording service employed by the school," seems to imply that the Defendant is under some obligation to view the video, collect information and provide it to Plaintiff. The subject of this motion to compel is the adequacy of responses to interrogatories, it is not a request for production. And if the District had gathered this information in a manner that constitutes qualified work product, ordering disclosure would result in Plaintiff's counsel "taking undue advantage of the attorney's industry or efforts."

The court cautioned that "a statement independently prepared by a witness does not become protected work product simply upon its transmission to an attorney." *Coito*, 54 Cal. 4th at 495. Thus the work product privilege may not apply to statements that the District merely received from witnesses who prepared them without any prompting or direction from counsel for the District.

The Coito Court discussed the test for whether a witness statement is in part the product of the attorney's work. The *Coito* Court recognized that a witness' statement obtained through an attorney-directed interview would be in part the product of the attorney's work because such a witness statement "would not exist but for the attorney's initiative, decision, and effort to obtain it. *Id*., at 495. The Court concluded, "This essential fact informs our analysis of whether absolute or qualified work product privilege applies to such witness statements."

The *Coito* Court discussed various conditions under which absolute privilege may apply to witness statements.

> *Absolute privilege.* It is not difficult to imagine that a recorded witness interview may, in some instances, reveal the "impressions, conclusions, opinions, or legal research or theories" of the attorney and thus be entitled to absolute protection**.** (§ 2018.030 (a).) This may occur not only when a witness's statements are "inextricably intertwined" with explicit comments or notes by the attorney stating his or her impressions of the witness, the witness's statements, or other issues in the case. (citation omitted) It also may occur when the questions that the attorney has chosen to ask (or not ask) provide a window into the attorney's theory of the case or the attorney's evaluation of what issues are most important. Lines of inquiry that an attorney chooses to pursue through follow up questions may be especially revealing. In such situations, redaction of the attorney's questions may sometimes be appropriate and sufficient to protect privileged material. At other times, however, it may not do to simply redact the questions from the record, as the witness's statements will reveal what questions were asked. Moreover, in some cases, the very fact that the attorney has chosen to interview a particular witness may disclose important tactical or evaluative information, perhaps especially so in cases involving a multitude of witnesses. …These are circumstances where absolute work product protection may apply. ." *Coito*, 54 Cal. 4th at 495.

The Court also recognized that the fact that an attorney took a statement from a witness, standing alone, might not invoke work product protection if the statement was taken with no particular foresight, strategy, selectivity, or planning. The Court explained, "What, for example, of the situation in which an attorney sends an investigator to interview all witnesses listed in a police report, and the investigator asks few if any questions while taking the witnesses' statements? Clearly, these statements would reveal nothing significant about the attorney's impressions, conclusions, or opinions about the case." Id*.,* at 495. Thus the Court held that statements taken by an attorney are not automatically entitled to absolute work product protection and must be examined on a case by case basis. *Id*., at 495-96.

The *Coito* Court also explained that the party asserting the privilege has a burden to make a preliminary or foundational showing that disclosure would reveal his or her "impressions, conclusions, opinions, or legal research or theories." *Id*., at 495-96. The court directed trial courts to make in camera inspections to determine whether work product protection applies.

The Coito Court held that witness statements obtained through an attorney-directed interview were entitled to at least qualified work product protection under § 2018.030(b). *Coito*, 54 Cal. 4th at 496.

The Coito Court expressed disapproval of attorneys "obtaining through discovery a witness statement obtained by opposing counsel through his or her initiative." *Coito*, 54 Cal. 4th at 496.

> Even when an attorney exercises no selectivity in determining which witnesses to interview, and even when the attorney simply records each witness's answer to a single ("What happened?"), the attorney has expended time and effort in identifying and locating each witness, securing the witnesses to interview, and even when the attorney simply records each witness's answer to a single ("What happened?"), the attorney has expended time and effort in identifying and locating each witness, securing the witness's willingness to talk, listening to what the witness said, and preserving the witness's statement for possible future use. *Id.,* at 496.

The Court concluded that even statements taken in this manner were entitled to qualified work product protection, and observed, "Absent a showing that a witness is no longer available or accessible, or some other showing of unfair prejudice or injustice (§ 2018.030, subd. (b)), the Legislature's declared policy is to prevent an attorney from free riding on the industry and efforts of opposing counsel." Thus if the District is in possession of a statement and asserts a qualified work product privilege, the burden shifts to Plaintiff to establish that denial of disclosure will unfairly prejudice the plaintiff or result in an injustice.

3. The Court agrees that the call of the interrogatories potentially includes communications that may be shielded by Attorney-Client Privilege

The Court agrees that the interrogatories seeking "all steps taken," and the "outcome of results of that investigation" calls for communications that are attorney-client privileged. In addition, "all steps taken" to investigate "Plaintiff's claims" (i.e., the claims asserted in the lawsuit) encompasses communications that may be privileged.

Plaintiff contends, "the interrogatories do not ask what the Defendant told its attorneys or what legal advice counsel provided." (Plaintiff's Reply, 4:18-20) The plain English interpretation of "all steps" reasonably includes communications, emails or memoranda sent as "steps" taken. The Court finds there is substantial justification for the District to assert work product and attorney-client privileges.

4. Minor's FERPA Rights (Education Code "Ed. Code" § 49061(b).

The District represented to the Court that this issue is largely moot, as the students who were minors at the time of the incidents are now over the age of the majority and all but one does not object to release of their statements. SRVUSD's Opposition to Motion to Compel Further Responses to Special Interrogatories, ("Opp.") at 11. The court anticipates hearing on the issue of the objecting witness in a separate motion, as indicated by the District's Opposition. This issue appears not to require any further court order.

Conclusion

Plaintiff is not absolutely entitled to “all the steps” and results of District investigation into the claim Plaintiff asserted in litigation. If all Plaintiff sought was a list of people known to have been present at any of the incidents, these interrogatories were too blunt of an instrument to accomplish that. Plaintiff could have asked what if anything did non-attorney employees of the District do consistent with Concussion protocols. By asking for “all the steps” taken to investigate the litigation, it does appear that Plaintiff was trying to save itself time and effort and piggy-back on the Defendant’s investigation. The three interrogatories at issue are overbroad to the extent they seek material that is potentially work product or attorney-client privileged. The Defendant’s argument to limit the scope of the response based on the sustained Demurrer was understandable but ultimately irrelevant.

Plaintiff is not entitled to take undue advantage of the Defendant’s attorney’s industry or efforts. And Defendant is not entitled to assert a blanket work product / attorney client privilege claim without a foundational showing to the Court. The FERPA issue appears to have been resolved as to all but one the students in question and does not need court intervention at this time.

Defendant is ordered to answer the interrogatories to the extent that it has information about “steps” taken which are not protected by work product / attorney client privilege. The Defendant is ordered to produce a privilege log describing responsive information that is not disclosed. The privilege log shall be in table form with eight columns from left to right titled: Item number, Date of item, Document type, Author(s), Recipient(s), Description of Item, Nature of claimed privilege (“AWP”, “QWP”, or “A/C”), and reason for the assertion of privilege.

The court does not feel that either party has misused the discovery process. Each acted to a degree on good faith, defensible arguments, and many of their disputes were resolved without bringing them to court. The District has acted with substantial justification and the court finds that awarding sanctions against the District would be unjust. The court wishes the parties’ meet and confer efforts could have gone further in negotiating the outcome that is being ordered today. The court declines to award sanctions against either party.

The Defendant is ordered to produce further non-work product and non-privileged information within 60 days of notice of entry of this order, along with a privilege log. If the Defendant is not willing to produce the privilege log to Plaintiff (if the nature of the assertion of the privilege would compromise the privilege) then the Defendant is ordered to seek an in chambers review with the court by noticed motion (or by submitting a stipulated request of the parties) that the court set a date for an in camera inspection of the log and of the responses. Plaintiff shall be entitled to notice of the date of the in camera hearing and of the results of any material ordered to be produced. Defendants shall provide a court reporter for the in camera and the resulting transcript shall be ordered confidential and sealed and not to be disclosed without further order of the court.

Although there is no prevailing party, Plaintiff is ordered to notice all parties and file entry of this order.

15. 9:01 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AT DEPOSITIONS**
FILED BY: JOHNSON, GARY
****TENTATIVE RULING:****

Discovery Referee is appointed.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See CCP §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640. The Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Counsel shall prepare a written order with such findings and otherwise in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639.

Five discovery motions have already been brought to the court and ruled upon.

On November 8, 2024 Plaintiff's motions to compel further responses to Form and Special Interrogatories, and Requests for Production were granted in part. Sanctions were awarded to Plaintiff.

On August 1, 2025, Plaintiff's Motion to have Requests for Admission, Set 2, and to Compel Responses to Plaintiff's Request for Production of Document was ruled upon and the court ordered sanctions.

On August 22, 2025, the court denied Plaintiff's Motion to Compel further Responses To Plaintiff's Request for Production of Document as moot because prior to the hearing the Defendant provided verified responses and substantially complied with its obligations. The Court imposed sanctions in the amount of $350,

On December 18, 2025, Judge O'Connell ruled on Cross-Defendant's Motion to Compel Further Responses to Sunpoint Public Adjusters, Inc.'s Discovery Requests to Gary Johnson, Kevin Johnson, and Johnson and Johnson. The court imposed sanctions.

On January 30, 2025, the court heard Plaintiff's Motion to Compel further responses from Third Party Magido CPA to a Request for Documents attached to a deposition subpoena. (Currently under submission to the court.)

Three more discovery motions have been filed with the court and are set for hearing.

> Defendant's Motion to Compel Sunpoint's Attendance at Deposition, (filed October 15, 2026).
>
> Defendant's Motion to Compel Sunpoint's Further Responses to Request for

Documents (ESI), Kevin Johnson's Cell phone (filed October 15, 2026)

Cross Defendant's Motion to Quash Defendant and Cross-Complainants's Subpoena to Merlin Law Group, PA, filed December 20, 2025 and set for hearing March 6, 2026.

These three motions shall be dropped from calendar and referred to a discovery referee along with any future discovery motions in this case.

The Court finds, in its discretion, that such an appointment is necessary. The Court finds that in view of the history of numerous discovery motions, and in view of the existing disputes raised by the pending motions and complexity of those issues require discovery reference. Section 629(a)(5) of the Code of Civ. Proc. Section 639(a)(5) states, "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

By no later than **February 20, 2026 at noon**, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the referee's curriculum vitae and fee schedule by no later than February 27, 2026.

If the Parties are unable to agree to a particular discovery referee by February 27, 2026, the parties are to submit a joint statement to the court containing information about one proposed referee for each side. (For purposes of selecting a Discovery Referee, the plaintiff and Cross-Defendants are one side, and the Defendants and Cross-Complainants are the other side.) The joint statement shall list two candidates, and attach as exhibits containing candidate's fee schedules, describing any limitations on their availability to serve as a referee, previous pertinent experience, including past service as a discovery referee, and curriculum vitae. Exhibits must not to exceed 5 pages per candidate. **The parties are not to identify which party is proposing which candidate for referee.**

The joint statement proposing candidates to serve as discovery referee should be filed with the court and separately emailed to dept32@contracosta.courts.ca.gov by March 6, 2026 at noon.

The Court will select one of the proposed referees by unreported minute order and notify the parties. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties. (I.e., if there are five parties, each party to pay one-fifth of the initial retention fee. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

The court sets a Case Management Conference in this matter for June 22, 2026 8:30 a.m., Department 32. All parties to file an updated Case Management Conference statement 15 days before the conference.

16. 9:01 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS**
FILED BY: JOHNSON, GARY
****TENTATIVE RULING:****

See Line 15.

Law & Motion
Add On

17. 9:00 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES CAI**
FILED BY: INSULATION GURU, INC DBA HVAC GURU
****TENTATIVE RULING:****

On January 29, 2026, the court found good cause and granted the *ex parte* request of SAC Attorneys LLP to advance the hearing date of the Motion to be Relieved as Counsel from the hearing date of April 10, 2026 to the hearing date of February 6, 2026. Proof of service on Defendant Insulation Guru, Inc DBA HVAC Guru of the notice of the change in the hearing date, along with re-service of the moving papers has been filed with the court.

The unopposed Motion of SAC Attorneys LLP to be Relieved as Counsel is granted.

SAC Attorneys LLP is to submit a revised proposed order on Judicial Council Form MC-053 for the court's signature. The order will become effective upon proof of service of the order on Defendant Insulation Guru, Inc DBA HVAC Guru.

Law & Motion
Add on 2

18. 9:00 AM CASE NUMBER: C25-02059
CASE NAME: DEREK HOCKETT VS. CHRISTINA GARCIA JIMENEZ
***HEARING ON MOTION IN RE:**
FILED BY: HOCKETT, DEREK L.
TENTATIVE RULING

On February 2, 2026, the unopposed motion of attorney James J. Romag to be relieved as counsel was advanced from the hearing date of April 24, 2026 to the hearing date of February 6, 2026 by the stipulation of the parties. Attorney Romag has filed proof that his client has been served with notice of the change in the hearing date.

The motion is granted. Attorney Romag is to submit a revised proposed order on Judicial Council Form MC-053 for the court's signature. The order will become effective upon proof of service of the order on Plaintiff Derek Hockett.

Law & Motion
Add On 3

19. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: TO STRIKE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to February 20, 2026.

20. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
HEARING ON DEMURRER TO: TO 2ND AMENDED CROSS-COMPLAINT
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to February 20, 2026.